

COUNCIL VACATES SCHUEBEL'S JOB

BIG WORD BATTLE STAGED AT MEETING. BRIDGES CHALLENGED

ATTORNEY FIGHTS FOR FEE

Ability Praised by Debaters Who Vote Against Legal Representative

George L. Story, alleged city prosecutor, won a decision over C. Schuebel, claimant to the title of city attorney, at the stag smoker held in the Oregon City council chamber last night. The decision was made by nine aldermen and the verdict was a four-four tie until Mayor Hackett cast his vote in favor of Mr. Story, and thereby Mr. Schuebel completely lost his job with the city.

The meeting was the "warmest" session held here in many months and the smoke from frothy utterances mixed congenially with that from sundry pipes, cigars and cigarettes smoked by the large number of men gathered to see and hear the big fight.

Councilman H. M. Templeton set off the fireworks when the report of the finance committee was read and it was learned that the committee had not approved Mr. Schuebel's salary bill. Mr. Templeton told his position in the matter and defined his reasons for not signing the report for Mr. Schuebel. Although he respected Mr. Schuebel for his work and his ability the people had decided in favor of Mr. Story, Templeton said, and Mr. Schuebel should quit like a game sport.

In his own defense C. Schuebel made an impassioned address. "I did not want and do not want anything to do with the legal affairs of this city. I was asked what I would charge to carry on certain civil litigation and I set my price. The council's committee employed me on that basis and for the purpose of finishing the work which I had already undertaken. I will willingly give up this work if someone capable of handling it is appointed. I will withdraw the bill for my services and destroy it—but I will be paid for the services I have rendered. I shall have my fee for prosecuting the recent circuit court case even though I have to collect it at the end of a law suit," Mr. Schuebel said.

Councilman Metzner was a capable Schuebel champion. In his argument he praised Mr. Schuebel and said his labors were necessary to save the city. He is the only lawyer able to handle the work, said Mr. Metzner.

The council worked in absolute units, and there were two distinct units. At each suggestion from H. M. Templeton, Councilmen Moore, Van Auker and Bridges voted just as Templeton did. The other four members, Friedrich, Metzner, Buckles and Cox, voted against the other quartet at every turn. In the crucial places Mayor Hackett voted with the first bunch and decided the tie.

George L. Story, elected city prosecutor, took no part in the battle other than to answer an occasional salvo from Schuebel. He let Joseph E. Hedges present his case and Mr. Hedges debated for some time on the contention that the charter made no provision for two legal offices and that one must be illegal. He said that the council resolution by which Mr. Schuebel was employed at a salary of \$720 a year was not legal for it had not been provided for in the charter.

The duties of Mr. Story were clearly defined by the charter. Mr. Schuebel pointed out, and stated that at no time had he had the slightest desire to infringe upon any of these duties. He was employed by the council, he said, and was doing only the work he was instructed to do and promised pay for. He seconded Metzner's statement that the city had been robbed to the tune of \$1700 to \$2500 for legal service before the salary and fee plan was adopted.

When the clash calmed down after a wealth of incidental argument, Metzner challenged the vote of Isom C. Bridges, third ward councilman who was declared ineligible by Judge Campbell on Tuesday. Under the condition that Mr. Bridges is appealing the case to a higher court his vote was admitted.

Templeton, Moore, Bridges and Van Auker voted to relieve Mr. Schuebel of all legal business for the city. Metzner, Friedrich, Buckles and Cox voted to retain him. Mayor Hackett cast the vote that ousted Mr. Schuebel.

Mr. Schuebel then asked to withdraw his bill for pay for his services. Templeton amended the motion to read that the bill should be tabled indefinitely. By a vote divided the same as previous votes the amendment was adopted and Mr. Story's salary bill met a like fate for the time being.

Each of those who spoke during the debate praised Mr. Schuebel and his work except George L. Story, city

WIRES TO PRESENT FARMERS' PREMIUMS

LEGISLATIVE WORK REVIEWED. FORTY PRIZE WINNERS TO BE GUESTS

Forty or more Clackamas county farmers who won medals or diplomas at the Panama-Pacific exposition at San Francisco last year will be entertained by the Live Wires of the Commercial club at the regular weekly luncheon of that organization on Tuesday next. The Wires have sent personal invitations to each of the winners asking them to take lunch as guests of the club. The medals and premiums will be delivered to their owners with appropriate ceremonies.

The regular meeting of the Live Wires on Tuesday was given over to a discussion of the work of the state legislature, especially such of its activities as concern Clackamas county, and to making plans for the entertainment of the farmers who will come next Tuesday. B. T. McBain reported as chairman of the postoffice committee and induced the Wires to undertake an extensive lobby by correspondence with the Oregon senatorial delegation at Washington. Mr. McBain had been in attendance through much of the present session of the legislature at Salem and spoke in an interesting way upon the work that is being done there. George C. Brownell, who "gaffed" his constituents when he supported the Cascade county bill introduced by Senator Stephens, came in for his just criticism during the lunch hour.

The program of the meeting for next week, at which the farmers will be entertained, will be completed later this week and it is expected that the entire group of those who won prizes will be present.

Among the prize winners who will be guests of the Wires, and to whom personal invitations have been sent, are:

Geo. H. Gregory, Henry Boege, Michael Hemrich, Will Luckey, Chris Naegeli, O. E. Freytag, John Risley, G. A. Schuebel, W. P. Kirchman, Geo. Ingram, Fred Hutchins, Wm. F. Mueller, J. W. Smith, Fred W. Reiboff, Johnson Bros., Richard Simms, H. Longcoy, Daugherty Bros. W. B. Will Luckey, W. P. Kirchman, W. B. Lawton, August Steahley, Frank Jaggers, Fred Roederma, D. O. Chindgren, Jos. Bachmann, E. R. Leek, H. S. Anderson, C. E. Spence, H. W. Hagermann, Louis Funk, Fred Steiner, John Wise, E. W. Hutchins, Alfred H. Spangler, Gus Fischer, W. H. Brown.

TRACY PLEDGES \$500

Gladstone Citizen Will Help Council in Purchase of Truck

James Tracy of Gladstone has offered to donate \$500 toward the purchase of an automobile fire truck, which is very much desired by the city council. Mr. Tracy recently disposed of a half block of property to the Hawley Pulp & Paper company, on lower Main street for a consideration of \$40,000, and from this he will make his donation. The Hawley company has agreed to donate \$1000 to the fund and to buy the site of the Cataract Hose company's home for another \$1000. The Oregon City Woolen mills will donate \$500, making a total of \$3000 which could be secured in the fire truck fund.

Postoffice Examination

At the Oregon City postoffice on February 24 an examination, under the rules of the civil service, will be held to select a postmaster for Colton. Information pertaining to the test can be had from the local secretary at the Oregon City postoffice.

prosecutor. Mr. Hedges and Councilman Metzner said Schuebel had been the best city attorney Oregon City ever had. Mr. Schuebel accepted the vote of the council graciously. He repeated several times that he had not and did not want the city's legal business, but that he would be paid for what he had done or would know the reason why.

The council last night transacted much important business, but made the program incidental to the big fight. A resolution, lost in discussion once, was revived to call a special election to vote upon an appropriation of \$4000 for the purchase of a fire truck. The election will be held on March 5. Templeton and the mayor expressed the belief that the voters would turn down the proposition.

The city water board brought up the matter of a trade for the 13-acre tract where the council once desired to create a play ground and park. The communication was referred to the finance committee, which will meet with the water board. The Baptist church was given a permit to use the advertising space in the city elevator, the proceeds from its rental to go to the proposed Young People's institute. A petition for the vacation of the alley in block 35 was referred to the street committee.

The matter of letting a contract for street cleaning this year was taken up with the reading of an application for contract filed by W. M. Knoop. Mr. Knoop offers to do the work for \$115 a month if the city will buy a street sweeper.

BRIDGES MAY BE OUT OF COUNCIL

RESIDENCE REQUIREMENT IS NOT SATISFIED BY NEW ALDERMAN

TO APPEAL FROM DECISION

S. McDonald Was Second Highest Candidate. Andrews Brings Ouster Suit

Because the fact was established that he had not resided within Oregon City for one full year prior to his election to the city council, Isom C. Bridges was declared ineligible to the seat he holds by Judge J. U. Campbell's decision in the circuit here on Tuesday.

Mr. Bridges, the prosecution brought out, had resided in Oregon City for some 15 years, but he left there temporarily more than a year before his election to the council on December 4 last. His residence here was not resumed within a year before his election. Mr. Bridges was elected from the third ward to succeed E. B. Andrews by a margin of 65 votes over S. McDonald, the next highest candidate. Mr. Andrews was third and Mr. McDonald had a small plurality over him.

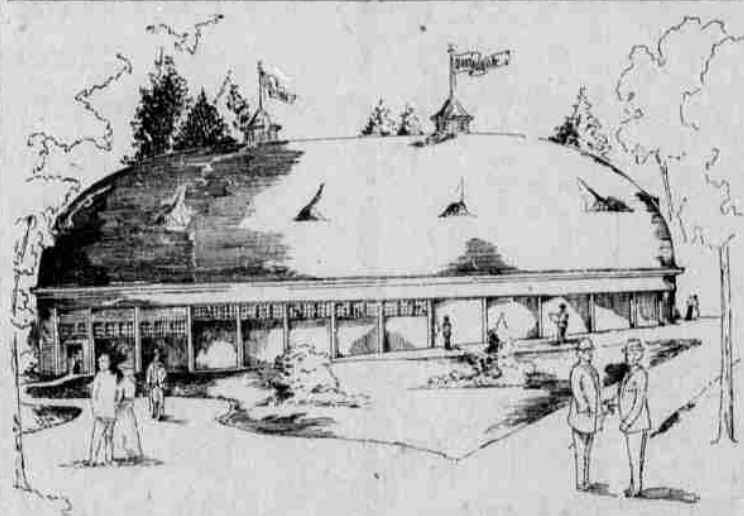
Mr. Andrews retired with objections from the council following the election of Mr. Bridges and the official canvass of the vote by the city council. Mr. Andrews brought suit immediately to have Mr. Bridges ousted on the ground that he had not satisfied the residence requirements of the city charter.

Following the trial in the circuit court Tuesday Mr. Bridges gave notice that he would appeal to the state supreme court. He contends that, although he had not been in the city for more than a year prior to his election, he had maintained his legal residence here. While the litigation is pending the council probably will allow Mr. Bridges to retain his seat and vote at the meetings.

Attorneys for Mr. Andrews, who brought the suit against his successful opponent, believe they can show why Mr. Andrews should be seated in spite of the fact that he received less votes than either of the other two candidates from the third ward. S. McDonald, being second in the race for the seat, would automatically succeed Mr. Bridges, in the opinion of some who have studied the case. The councilmen from ward three, in addition to Mr. Bridges, are E. L. Moore and E. D. Van Auker.

Fosberg is Jailed

Roland Fosberg, arrested late Saturday night on a charge of drunkenness and disorderly conduct, appeared before Recorder John W. Loder Monday, after spending Sunday in the city jail. A sentence of 30 days in jail and a fine of \$25 was read to the young man and he was returned to jail to serve the time.



Prospective of Proposed Gladstone Park Chautauqua Auditorium. Seating Capacity 4500, Cost \$6000

Chautauqua patrons will enjoy the next session of the assembly in a brand new auditorium, if the recommendation made by the building committee at a meeting in Chairman Cross's office Tuesday evening is heeded by the board of directors. The present plans are to erect a structure to cost in the neighborhood of \$6000, and which will seat from 4000 to 4500 people. While the exact plan of the new building has not as yet been adopted, in all probability the directors will erect an elliptical structure, patterned generally after the Mormon tabernacle in Salt Lake.

At the meeting Tuesday it seemed to be the general opinion that the old structure had outgrown its usefulness and that a new building to be built on larger lines would be necessary to keep up the successful record of the assembly. The new building will seat at least 1500 more people than the present auditorium, and a decided improvement will be made in the acoustics. The present plans also embrace a new seating system, and a flooring plan. The floor, however,

DELINQUENT MEMBER NAMED IN MESSAGE

MAYOR WOULD START STREET WORK. WILL NOT RECOGNIZE SCHUEBEL

Addressing the city council at its meeting last evening, Mayor Hackett recommended to the attention of that body the actions of J. F. Albright, councilman from ward one and referred the members to a clause in the city charter which empowers them to oust the delinquent member. Councilman Albright has been absent from three successive meetings of the council and another unexcused absence will mean that he can be automatically dropped from the council.

Mayor Hackett also called to the attention of the aldermen the matter of street improvement. The council is pledged to a program of hard surface street improvement and in this connection the mayor suggests either the establishment of a municipal paving plant or the employment of a paving contractor to improve certain sections of city street.

The mayor's message in full is as follows:

"I wish to call your attention to the fact that in our budget a certain amount was set apart for hard-surfacing of our streets. Don't lose sight of this fact. There are two ways to do this. We must do it ourselves or get some one else to do it. I am of the opinion that we should own our own plant; but if you think we cannot do this, we had better advertise for and receive bids for as much as we have money to pay for. I have taken the matter up with the street committee and they and I are of the opinion that we ought to improve 17th street, connecting Main street with the Parkplace road.

"The balance of the money should be spent on Mohalla avenue. At any rate we should spend the money where it will benefit the most people. "There is another matter that needs your careful consideration. At the regular city election held December last, the people elected a city attorney. It is their fault, not ours. We should not assume to be wiser than the people and undertake to set aside the voice of the people.

"In my opinion Mr. Schuebel is not city attorney and I cannot recognize him as such till he is legally declared to be so, notwithstanding the so-called resolution passed attempting to employ him. This is merely a farce in my opinion and should be rescinded and held for naught.

"I have another painful duty to perform. I need not say that a certain member of the council has been acting in a way to reflect discredit upon himself, this city and upon this body. I've wondered how long you would tolerate this kind of thing. This matter is entirely in your hands, gentlemen, and I refer you to page 10, section 32 of the old charter."

The charter rule set out on page 10, section 32 of the charter reads: The council may punish any member for disorderly or improper conduct at any meeting, or for refusing or neglecting to attend any regular meeting without any sufficient cause therefor, and may, by a three-fourths vote, expel the member.

CASCADE COUNTY BILL IS KILLED

SENATE POSTPONES STEPHENS PROPOSAL AFTER DIMICK FIGHTS IT

HOUSE FAVORED DIVISION

Four Noes Voted in Senate. The Job Hunters Lose Hope. Lewis Votes for Bill

Clackamas county will remain intact. There will be no Cascade county and there will be no jobs for the hunters who have valiantly, and with a degree of success, prosecuted the division proposition for several weeks in the halls of the state legislature. Clackamas county will continue to elect whom it pleases to office and to build roads in the most approved style and with the greatest degree of impartiality, that is possible.

Cascade county's ambitions went glimmering in the senate chamber at Salem yesterday when Senator Walter A. Dimick had finished an hour of argument against the division and the senate adopted the report of the senate committee on counties. In his talk on the floor Senator Dimick pointed to the report of the committee, which recommended that the senate have nothing to do with county division proposals until a vote had been taken in the territory affected. He argued vigorously for the indefinite postponement of house bill 165, introduced by Representative H. C. Stephens, legislative father of the county division business, which would have created Cascade county from the eastern section of Clackamas county and establish Estacada as the county seat.

The committee's report was a record opposing the submission of county division questions to the legislature without a vote having been taken by the people of the county. This same contention was the basis of the fight made against the bill by people in all parts of the county who were against it. Twenty-two senators voted for the adoption of the committee report following the argument of Senator Dimick. Only five voted against the report, and this number included Joint Senator Hermon C. Lewis, whose representation is anything but "joint."

Among those who voted to adopt the report were the three gentlemen of the counties committee, Senators Dimick, Orton and Leinenweber. The vote on the report was as follows: Ayes—Baldwin, Barrett, Cusick, Dimick, Eddy, Garland, Gill, Handley, Hurley, L. La Follette, Leinenweber, Orton, Pierce, I. S. Smith, J. C. Smith, Steiwer, Strayer, Vinton, Von der Hellen, Wilbur, Wood and President Moser.

Noes—Bishop, Shanks, Hawley, Lewis and Olson. Cascade county sponsors won their first real victory in connection with their bill on the floor of the house of representatives on last Thursday, when Representative Stephens of George, within the new county, succeeded in arguing his bill to a passage by a vote of 43 ayes and 13 noes. Representative George C. Brownell surprised the majority of his constituents in no mild manner when he spoke rather favorably to the bill and voted for it.

The debate preceding the vote in the house took so long that the last Thursday morning session was carried far past the noon hour. Stephens opened the argument. He said that the present law for creating counties was of no use, for under its provisions it was almost impossible to establish a new district.

Representative Dedman and W. B. Jones opposed the bill. Representative Brownell said he thought the question was immaterial to the majority of the people of his county, for the people in the proposed county were new settlers and of a different feeling than the people of Clackamas county. Representatives Peck and Lewis, of the committee on counties, said that they favored the creation of the new county. They said the petitions signed by the applicants were filled with legitimate names while the petitions against were faulty.

Fearing that he might be caught in a manner similar to other representatives who had their plans blighted by pledged members walking out on them at roll call, Stephens insisted on a poll of the house before the vote was taken.

Maccabees Will Entertain

The local lodge of Maccabees is planning a meeting next Monday evening under the direction of J. W. Sherwood, state commander of the order. J. E. Werlein and Judge Morrow, of Portland, are expected to attend and will be assisted in a program of speeches by several local speakers. The degree team and orchestra of tent No. 1, of Portland, will furnish entertainment and a lunch will be served. The meeting is to be held at Knapp's hall.

Courier and Daily Journal—\$4.75.

PETITION THREATENS STRINGTOWN HOMES

WOULD ESTABLISH A COUNTY ROAD. ACTION MIGHT CUT OFF YARDS AND FENCE

Either certain residents in Stringtown will not have spacious front porches upon which to rock and chat in the glimmering summer moonlight or the proposed state and federal aid road will not go through that pleasant home community. Among the many front porches, lawns and fences in the community, several are threatened with total destruction as a result of the notification received by the county court and others interested, that a petition will be filed soon asking the establishment of a county road practically along the route of the old territorial road through Stringtown. Forty-three property holders in the district have signed the petition which will be presented and their names appear also upon the notice delivered to the court.

Attorneys have already been retained by those whose property would be affected by condemnation of space for the new roadway, and they plan to prevent the establishment through court action. The result, according to lawyers here, is likely to be a long legal tangle. The territorial road runs between the property lines and the railroad track, which, in reality, is on the county road by virtue of a grant on the part of the court. The petition to be filed will ask that the road requested be formed by the condemnation of property east of the present territorial road boundary, thus cutting off the front porch of one home and damaging other property in various ways.

Legal opinion here says that inasmuch as there has already been a county road, part of which was given as a right of way to the railroad company, another cannot be established. The territorial road is narrow and the desire of those who have signed the petition to the court is to make it of standard width and maintain it as a link in a through road, probably the Pacific highway, between Portland and Salem. The property owners who would be damaged by extending the width of the road east say that since there is nothing to the west between the property and the river except the tracks that the extension must be made in that direction if made at all. Such a change would necessitate the moving of the railroad tracks. Any petition to the court will be the sign of battle to the objecting property owners, they say.

MILWAUKIE CLUB IS RAIDED BY MARSHAL

DISTRICT ATTORNEY IS ASKED TO AID IN PROSECUTION. SULLIVAN ON BOND

The Friars' club at Milwaukie was raided early Friday morning by City Marshal Sam Riley, of Milwaukie. Larry Sullivan, who with Martin Denney is proprietor of the club, was put under arrest. Under Marshal Riley, four assistants had no trouble in entering the club house. In a secret cabinet under a stairway three bottles of whiskey were found, and beneath the kitchen floor more liquor was hidden. In all three quarts of whiskey, three bottles of champagne and eight bottles of beer were confiscated. Larry Sullivan provided \$250 cash bail.

There were no intoxicants on the tables at 2:30 Friday morning, when the raid was made, and only two of those who were employed at the club when it was managed by Julius Wilbur were present. One of these was Tommy Nishiki, Japanese porter. There was a small group of guests in the place. Those who assisted Mr. Riley were Homer Mullen, H. C. Riley, Henry Phillips and J. F. Rigdon.

Marshal Sam Riley was one of the witnesses for Wilbur at the recent trial in which the former club proprietor was convicted of violation of the prohibition laws. He testified to the good character of the place and was told of his social visits there. He was at that time a deputy sheriff, but was not reappointed this year. Sheriff Wilson and District Attorney Hedges were not advised of plans for the raid Friday.

Evidence against the Friars' club was placed in the hands of District Attorney Gilbert L. Hedges Saturday by Marshal Riley and Justice of the Peace Kelso. Mr. Hedges will probably present the case to the grand jury, which will meet here this month.

The Friars' club has figured in much liquor law violation within a few years and its former manager, Julius Wilbur, was convicted three times. A six-months' jail sentence is pending against him now, while he has taken the case to the supreme court on the ground that his indictment was faulty.

Marriage License

County Clerk Iva Harrington Monday issued a marriage license to Mildred S. Bissell and William F. Mueller, of Boring.

HYDE TITLES TO LAND ARE GOOD

CAMPBELL DECIDES AGAINST COUNTY IN BIG SUIT. GIVES REASON

3240 ACRES ARE INVOLVED

Evidence of Fraud in Manner in Which Title Was Secured. Case is Aged

Holding in substance that the state legislature of 1901 ratified all titles made prior to that date on school lands in this state, Judge J. U. Campbell Monday found F. A. Hyde of San Francisco not guilty of charges of fraud brought against him by the state of Oregon through Attorney General Brown. The decision is the second rendered in Oregon where cases of a similar nature against Hyde are pending in several counties. Judge Galloway of Linn county made a decision in practically the same case there in which he found Hyde guilty and declared in favor of the state.

In this county 3240 acres of school land are involved in the action against Hyde and the Western Lumber company of Montana. The state charged in the trial here on November 20 to 24 that in 1899 Hyde had sent J. L. Schneider to Clackamas county to secure school lands, which were on sale at \$1.25 an acre. By the use of fictitious names, it was charged, Hyde secured 146 applications to the lands. Later he sold much of the property to the lumber company, which therefore became involved in the present litigation.

The action against Hyde was brought into the local court many months ago, but it was tried before Judge Campbell for four days, beginning November 20 last. G. G. Brown and J. O. Bailey were witnesses for Mr. Hyde at that time. Judge Campbell then took the matter under consideration.

"In 1907, when I was a member of the house of representatives," said Judge Campbell, "the legislature passed another act repealing the act of 1901 except as to those lands on which deeds had already been issued and the full price, \$1.25 an acre, had been paid to the state.

There was evidence that the Hyde agents had obtained the land through fraud but the fraud was against the parties who were used for obtaining the land rather than against the state itself, as the state received the full legal price of the land at that time. The school fund did not suffer by the fraud.

"As the legislature has validated the titles, I considered that it was not a question for the courts to determine whether it was a wise or a foolish measure. This issue was not presented to Judge Galloway. I happened to recall the acts as I was in the legislature at the time."

The land s in the forest reserve in Clackamas county and much of it was obtained through the use of scrip by the Western Lumber company. The company has contended that it was an innocent purchaser in the transaction, regardless of any fraud on the part of Hyde.

ELECTION IS CALLED

By resolution passed at the council meeting last night a special municipal election was set for March 5, at which time voters will decide the matter of the purchase of a motor driven fire truck. The resolution designates the ballot title and calls for a vote upon the proposition to appropriate \$4000 for the purchase of the truck. Judges and clerks of election, men who have volunteered to serve free of charge, in order that the cost of election may be minimized, were named.

The fire truck will be purchased, if the voters approve, with the appropriation in connection with the sale of the site and home of the Cataract hose company and the donations of W. P. Hawley, A. R. Jacobs and James Tracy of Gladstone. The Cataract site and home will bring \$1500, Mr. Hawley will donate \$1000, Mr. Jacobs has added \$500 and the same amount has been donated by Mr. Tracy, making a total available, aside from the appropriation, of \$3500.

More Deputies Named

County Assessor W. W. Everhart on Tuesday named three more deputies for the field staff which will start work within the next few weeks in valuing the property of the county for the 1917 tax assessment. The men named are N. R. Graham of Needy; Jerome Avery, Milwaukie, and Charles Thompson, Stafford. These appointments bring the staff up to eight at present and there are about three yet to be added.